

## M/s Sumiti Alloys Pvt. Ltd. v. Paschimanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 21 March 2017 · Writ - C No. 34994 of 2013 · **Writ dismissed following connected 4.20 additional-security batch.**

### HEADNOTE

A writ challenging additional security under Para 4.20 of the U.P. Electricity Supply Code, 2005 was connected with a batch including Writ Petition No. 30582 of 2009 and, at the interim stage, the licensee was restrained from demanding additional security. The petition was later dismissed, with reasons to be seen in the order of even date in Writ-C No. 30898 of 2016.

### FACTUAL SUMMARY

M/s Sumiti Alloys Pvt. Ltd. petitioned against Paschimanchal Vidyut Vitran Nigam Ltd. challenging a demand of additional security under Para 4.20 of the U.P. Electricity Supply Code, 2005. On 2 July 2013 a Division Bench connected the writ with Writ Petition No. 30582 of 2009 and similar matters and, following the interim order there, restrained the respondents from demanding additional security until further orders. On 21 March 2017 another Division Bench dismissed the petition, directing that orders be seen in Writ-C No. 30898 of 2016 of even date.

### HOLDING-UNITS

#### HOLDING-UNIT · UP-2005::4.20

additional security deposit

#### HOLDING

The writ challenging the demand of additional security under Para 4.20 of the U.P. Electricity Supply Code, 2005 was dismissed by following the order of even date in Writ-C No. 30898 of 2016. No independent reasons were recorded in this petition. ¶ 2